BAC Trademark Policy

Build a CubeSat – use of the BAC name and marks Version 1.0, 2026-10-27

Trademark holder: nihil.space GmbH, Bern, Switzerland
Contact for permissions: hello@buildacubesat.space

> **Relationship to the other BAC guides.** The guides live at https://github.com/buildacubesat/bac-design. This policy governs how others may use the Build a CubeSat name and marks. The **BAC Identity Guide** defines what the marks look like and how BAC itself uses them (§1, §8); the **BAC Project & Tooling Guide** sets the licences for hardware, software and documentation (§2.1) and points here for the marks. Where a licence statement in another guide and this policy seem to overlap, this policy decides for the BAC Marks.

1. Purpose

Build a CubeSat (BAC) is an open-source space hardware project. We encourage people to study, reproduce, modify, distribute, and commercialize its openly licensed designs in accordance with the licenses that apply to those designs.

At the same time, the Build a CubeSat name and visual identity help the public distinguish official BAC activities and products from independent work. This policy explains how the community may refer to BAC and use its branding without creating confusion about origin, approval, or affiliation.

2. Names and branding covered

This policy covers the following identifiers when used to identify the Build a CubeSat project, its activities, or its products (together, the **BAC Marks**):

- The name **Build a CubeSat** and the abbreviation **BAC**;
- The official Build a CubeSat logo – the isometric cube mark, the uppercase wordmark, and the stacked lockup of the two, as described in the BAC Identity Guide §8 – together with its symbols and recognizable variants;
- Other brand assets explicitly identified as official BAC marks in the project's published brand materials.

This policy does not claim exclusive rights over ordinary descriptive uses of the words "build a CubeSat" or over unrelated uses of the letters "BAC". The scope of legal protection depends on applicable law and any registrations.

3. Relationship to open-source licenses

The project's hardware, software, and documentation remain governed by their respective licenses:

- **Hardware:** CERN OHL-S 2.0;
- **Software:** MIT License;
- **Documentation:** CC BY-SA 4.0.

Unless explicitly stated otherwise for an individual asset, the BAC Marks and their artwork are **excluded from those open-source and Creative Commons license grants**, including where they appear inside an openly licensed repository, document or design file. Copyright in the original logo artwork is reserved by nihil.space GmbH. The BAC Marks may be used only as described in this policy, under a separate written permission, or as otherwise permitted by applicable law.

The BAC guides describe the marks so that BAC and its permitted users reproduce them correctly; publishing that description under CC BY-SA 4.0 does not license the marks. The design tokens – colours, type choices, spacing – are openly licensed (MIT or CC BY-SA 4.0) and are not BAC Marks on their own; combining them with the BAC name or logo is covered by this policy.

Nothing in this policy restricts the freedoms granted by the licenses for the underlying hardware, software, or documentation. In particular, an independently manufactured or modified BAC-derived design does not need BAC trademark permission merely to exist, be distributed, or be sold under its own branding.

4. Uses allowed without prior permission

You may, without asking first:

1. **Refer to the project accurately.** Use "Build a CubeSat" or "BAC" in articles, videos, research, documentation, discussions, comparisons, and links to identify the project.
2. **Describe provenance and compatibility.** Make truthful statements such as "Based on open-source designs from Build a CubeSat", "Derived from BAC hardware", or "Compatible with the Build a CubeSat bacBus interface". Make clear who made and supports your product.
3. **Show the unmodified official logo for identification.** Display a reasonably sized official logo when reporting on, discussing, linking to, or teaching about the project, provided it is not used as the primary brand of your own product or organization and does not imply endorsement.
4. **Credit the project.** Retain attribution and notices accompanying legitimately redistributed BAC materials, including factual references to the project and its origin.
5. **Engage in noncommercial community activity.** Identify a community tutorial, informal workshop, or discussion group as *about* BAC, provided its title and presentation do not suggest that it is organized or officially endorsed by BAC.

These permissions apply to commercial and noncommercial communications where relevant, but not to using the BAC Marks as the brand or badge of origin for independently supplied goods or services.

5. Uses requiring prior written permission

Please contact nihil.space GmbH at hello@buildacubesat.space before:

- Using BAC or Build a CubeSat as part of a company, product, service, store, or domain name in a way that presents it as your own brand;
- Placing a BAC logo prominently on hardware, packaging, product listings, or advertisements so it functions as a manufacturer's mark, certification, or endorsement;
- Selling merchandise primarily bearing BAC Marks, such as shirts, stickers, or mugs;

- Using a modified, recolored, combined, or derivative BAC logo as a brand identifier;
- Describing an event, course, organization, or product as "official", "certified", "approved", "partnered", or "sponsored" by BAC.

Permission may include requirements to distinguish independent products, maintain consistent visual presentation, or meet agreed quality or support standards. Any special license should be in writing.

6. Uses not permitted

Do not:

- Misrepresent a product or activity as originating from, being endorsed by, or being affiliated with BAC;
- Use a BAC Mark as a certification or quality seal without authorization;
- Impersonate official BAC accounts, communications, websites, or repositories;
- Use branding confusingly similar to BAC's to mislead users about the source of goods or services;
- Suggest that compliance with an open-source license alone confers "official BAC" status.

7. Guidance for independent hardware manufacturers

BAC welcomes independent manufacture and sale of appropriately licensed designs. Independent sellers should use their **own** manufacturer or product branding and may describe BAC origins or compatibility factually.

For example:

- **Allowed:** "Acme CubeSat power board – based on the Build a CubeSat open-source design; manufactured and supported by Acme. Not affiliated with Build a CubeSat."
- **Allowed:** "Acme carrier board compatible with the BAC bacBus interface", if the compatibility claim is accurate.
- **Permission required:** Packaging a third-party board primarily under the BAC logo or marketing it as an "Official Build a CubeSat Power Board".

This trademark policy does not replace or relax obligations under CERN OHL-S 2.0 or any other applicable license.

8. Logo presentation

When using the BAC logo under Section 4, use an official, unmodified asset from an authorized BAC source. Do not distort, crop, rotate, recolor, or combine it with another logo in a manner that changes its identity. Surround it with enough space to make its role as a reference to BAC clear.

Where practical, include this attribution:

> Build a CubeSat and the BAC logo are identifiers of the Build a CubeSat project. Used for identification only; no affiliation or endorsement is implied.

Use of the ® symbol is not authorized unless the relevant mark is registered in the applicable jurisdiction. This policy does not assert that any BAC Mark is registered.

9. Requests, enforcement, and changes

For uses not covered above, send a description or mockup to **hello@buildacubesat.space**. Permission is not granted by silence.

nihil.space GmbH may ask users to correct a misleading use or discontinue a use that exceeds this policy. This policy may be updated prospectively. Permissions already granted in a separate written agreement are governed by that agreement.

Nothing in this policy limits uses that do not require permission under applicable law, including truthful descriptive reference where legally permitted.

10. Version history

The BAC governance guides are independently versioned; this policy joins them at 1.0.

Version	Date	Change
1.0	2026-10-27	First version, drafted by Mänu: the BAC Marks (name, abbreviation, cube mark, wordmark and lockup) excluded from the CERN OHL-S 2.0, MIT and CC BY-SA 4.0 grants; uses allowed without permission, uses needing written permission, uses not permitted; guidance for independent manufacturers; logo presentation; nihil.space GmbH as trademark holder, hello@buildacubesat.space for requests. Referenced from the Identity Guide 1.0, the Interface Design Guide 1.0 and the Project & Tooling Guide 0.15.